

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

EDWIN URUCHIMA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ATKIN  
HOUSSAIN, SGT. SUN CAO, JOHN DOE #1 and  
JOHN DOE #2,

Defendants.

Index No.

Date Purchased:

**SUMMONS**Plaintiff designates **KINGS COUNTY** as the place  
for trial. The basis of venue is plaintiff's residence.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
March 1, 2023


Robert Rambadadt, Esq.

**THE RAMBADADT LAW OFFICE**  
Attorneys for Plaintiff

THE RAMBADADT LAW OFFICE

Office & P.O. Box Address:  
16 Madison Sq. Pk. West—12<sup>th</sup> Floor  
New York, New York 10010  
P: (646) 450-8049  
F: (646) 224-9822

**Defendant's address:**

City of New York  
100 Church Street  
New York, New York 10007

P.O. ATKIN HOUSSAIN  
19<sup>th</sup> Precinct  
153 East 67<sup>th</sup> Street  
New York, New York 10065

SGT. SUN CAO  
19<sup>th</sup> Precinct  
153 East 67<sup>th</sup> Street  
New York, New York 10065

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

EDWIN URUCHIMA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ATKIN  
HOUSSAIN, SGT. SUN CAO, JOHN DOE #1 and  
JOHN DOE #2,

Defendants.

) Index No.

) Date Purchased:

**VERIFIED COMPLAINT**

Plaintiff, complaining of defendant, by her attorneys, THE RAMBADADT LAW OFFICE, respectfully alleges as follows upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.

2. This is a civil rights action in which Plaintiff, EDWIN URUCHIMA, seeks damages for personal injuries sustained as a result of the defendants' violation of her rights as secured by 42 U.S.C. §§1983, 1985 and 1986, and by the Fourth Amendment and the Equal Protection and Due Process Clauses of the Fourteenth Amendment of the United States Constitution, and for rights secured under the laws and Constitution of the State of New York. Plaintiff also sue in traditional tort pursuant to New York State claims. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully targeted, assaulted and wrongly detained and confined Plaintiff.

THE RAMBADADT LAW OFFICE

Plaintiff seek damages, compensatory and punitive, affirmative and equitable relief, and award of costs and attorney's fees and such other and further relief as this Court deems equitable and just.

3. Upon information and belief, at all times hereinafter mentioned, plaintiff, EDWIN URUCHIMA (hereinafter 'PLAINTIFF') is a resident of New York County, New York.

4. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, ("CITY"), was and is a municipal corporation duly organized and existing under the laws of the State of New York.

5. At all times hereinafter mentioned, Defendant CITY is a municipal entity authorized under the laws of the State of New York to operate and maintain the NEW YORK CITY POLICE DEPARTMENT ("NYPD"), inter alia, which acts as its agents in the area of law enforcement, custodial care and management of criminal offenders, and for whose actions, and the actions of individual police officers employed thereby, defendant CITY was and is ultimately responsible.

6. At all times hereinafter mentioned, Defendant CITY operated, maintained and controlled the NYPD, including all police officers therein and assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the consumers of the services provided by the NYPD.

7. Upon information and belief, at all times hereinafter mentioned, Defendants P.O. ATKIN HOUSSAIN and SGT. SUN CAO<sup>1</sup>, (hereinafter 'DEFENDANT OFFICERS'), were employed as Police Officers by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserved the constitutional rights of PLAINTIFF. DEFENDANT OFFICERS are sued both in their individual and official

capacity. At all times hereinafter mentioned, DEFENDANT OFFICERS were acting within the scope of their employment with the NYPD.

8. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE #1, (hereinafter "DOE #1"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of PLAINTIFF. Defendant DOE #1 is sued both in his/her individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

9. Upon information and belief, at all times hereinafter mentioned, Defendant P.O. JOHN DOE #2, (hereinafter "DOE #2"), was employed as a Police Officer by defendant CITY, and as such had a first line responsibility for taking appropriate measures to ensure that proper procedure was followed and preserve the constitutional rights of PLAINTIFF. Defendant DOE #2 is sued both in his/her individual and official capacity. At all times hereinafter mentioned, defendant was acting within the scope of his employment with the NYPD.

10. At all times relevant herein, each and every individual defendant herein was acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City of New York and, where relevant, the State of New York, at all times relevant herein with the power and authority vested in them as officers, agents and employees of the City of New York and State of New York, and incidental to the lawful pursuit of their duties as officers, employees and agents of the City and State of New York.

<sup>1</sup> For the purposes of this Complaint the defendants' names will be represented as such and Plaintiffs

STATEMENT OF FACTS

11. On July 26, 2018 plaintiff EDWIN URUCHIMA (hereinafter 'URUCHIMA' or 'PLAINTIFF') was northbound on the 5 train from the Union Square station.

12. The 5 train was overcrowded during rush hour.

13. Plaintiff URUCHIMA was holding his back pack over one shoulder and holding the pole with his other hand.

14. While on the train police officers approached plaintiff URUCHIMA and forced him to exit at the 86<sup>th</sup> Street station stating that he was under arrest.

15. The officers only stated that a complaint had been made against him and would not tell him what the complaint was in regards. It was later learned that Defendant HOUSSAIN made the complaint alleging that plaintiff URUCHIMA improperly touched a young lady on the train. It was later learned that the young lady never made a complaint or attempted to report an improper touching, she was informed by Defendant HOUSSAIN that she was improperly touched. Plaintiff URUCHIMA strenuously stated that he was innocent and did not commit the act he was being accused.

16. Plaintiff URUCHIMA fully cooperated with the officers and was taken to the 19<sup>th</sup> precinct and searched. He was then transferred to the Transit Union at Union Square.

17. Plaintiff URUCHIMA was charged in Criminal Court with: Forcible Touching (2 counts); and Sexual Abuse 3<sup>rd</sup> degree. He entered a plea of 'Not Guilty'.

18. Plaintiff URUCHIMA fought these wrongful charges for three (3) years. During this time, he lost many employment opportunities.

---

reserve the right to amend the caption and subsequent instances with alternate spelling of the names.

THE RAMBADADT LAW OFFICE

19. Plaintiff URUCHIMA has a Bachelor's Degree in Business Management from Alfred State College, not previous arrest, yet each time a background check was performed the above stated charges would appear and would not be hired for the position.

20. While working for one employer who did not perform a background check, it was brought to his attention that a co-worker who has a friend who is an attorney in the criminal court, informed him that plaintiff URUCHIMA was defending against charges relating to sexual assault. Plaintiff URUCHIMA was subsequently terminated.

21. As a result of defendants improper and unsubstantiated actions Plaintiff URUCHIMA was made suffer three (3) years of psychological and financial injuries, including but not limited to social stigma and impoverishment.

22. Plaintiff URUCHIMA was successful in having the charges dismissed and on January 19, 2022 he filed a Notice of Claim.

23. Plaintiff URUCHIMA served a Notice of Claim at least thirty (30) days prior to the filing of this action and defendants did not satisfy this claim or refused to do so.

24. As a direct and proximate result of the breach of constitutional rights, state law and procedure by defendants, plaintiff suffered: conscious pain and suffering; suffered mental anguish; and has sustained other damages and that all of the injuries and damages sustained by plaintiff are the direct and proximate result of the willful violations of plaintiff's constitutional rights and state procedural laws by all of the defendants without any act or omission on the part of the plaintiff directly thereunto contributing.

### **FIRST CLAIM**

25. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-24 above.

26. At all times relevant herein, the conduct of all defendants was subject to 42 U.S.C. §§1983, 1985, 1986, and 1988.

27. The conduct of each of the defendants ATKINS, CAO, DOE 1 and DOE 2, on or about May 12, 2022 and all subsequent dates, acting under color of state law, jointly and severally, in conjunction with each other to cause, in failing to prevent others from causing, and in unlawfully causing plaintiff to be incarcerated on false pretenses or probable cause, in causing plaintiff to suffer physical and emotional distress, and in depriving him of his Fourteenth Amendment due process rights, were undertaken with deliberate indifference, intentionally, maliciously and/or with reckless disregard for the natural and probable cause of their acts without lawful justification, and was designed to and did cause specific and serious physical and emotional harm, pain and suffering in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §§1983 and 1985 and the Fourteenth Amendment.

28. Defendants did falsely and deliberately stop, assault detain and cause him to be arrested for several hours as result of their improper actions thereby violating the civil rights.

29. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

### **SECOND CLAIM**

30. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-29 above.

31. As a result of their concerted unlawful and malicious acts of all Defendants, Plaintiff was deprived of his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fourteenth Amendment of the Constitution of the United States and 42 U.S.C. §§ 1983, 1985(3) and 1986.



32. That defendants ATKINS, CAO, DOE 1 and DOE 2 did knowingly agree in conjunction with each other to falsify information against plaintiff without cause or justification in violation of federal and state constitutional rights and in violation of due process and procedure under the laws of the state and city of New York, which resulted in injuries to plaintiff.

33. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

### THIRD CLAIM

34. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-33 above.

35. Defendants ATKINS, CAO, DOE 1 and DOE 2 **knowingly, purposely and with malice aforethought** through a concerted effort actively organized and guided the decision to falsely accuse plaintiff of a criminal act in violation of his fourth, sixth and fourteenth (14) amendment rights.

36. Through a recognized and established practice of unscrupulously violating procedure and due process defendants without just cause to secure a warrant, that is, the state of the facts in the mind of Defendants that would not lead a man of ordinary caution and prudence to believe, or entertain an honest or strong suspicion that a criminal act had occurred did violate plaintiff's constitutional rights.

37. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have

jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper

#### **FOURTH CLAIM**

38. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-37 above.

39. On information and belief, defendant CITY failed to effectively screen, hire, train, supervise and discipline its employees, servants, agents and assigns, including the named defendants herein, for their lack of truthfulness and failure to protect citizens from unconstitutional conduct of other state actors, thereby permitting and allowing the defendants herein to be in a position to fail to protect plaintiffs and to deny their rights as such guaranteed under the Federal and State constitutions.

40. On information and belief, the Defendant CITY failed to put into place and otherwise maintain an adequate structure for management relative to NYPD officers and employees and other servants, agents, officers, and employees. The structure was deficient, inter alia, at the time of evaluation and exchange within the command structure about the performance of individual NYPD officers employees; to the training of supervisory personnel to effectively and adequately evaluate performance of the NYPD officers employees; and to otherwise put the command structure on notice that an individual or individuals were at a significant level of risk to the public at large or to specific segments thereof. The net effect of this was to permit NYPD officers employees of the City and State of New York to function at levels of significant risk to the public.

41. On information and belief, the defendants ATKINS, CAO, DOE 1 and DOE 2, have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendant CITY on notice that the said defendants were likely to engage in conduct

that would violate the civil and constitutional rights of the public, such as conduct complained of by the Plaintiff herein

42. As a result of a conscious policy, practice, custom or usage, defendants have permitted, allowed and given tacit approval for the employment and retention of individuals whose individual behavior and circumstances place the public or certain segments thereof at substantial risk of being victims of civil rights violations and the lack of veracity demonstrated by the defendants herein

43. Such policy, practice, custom or usage was a direct and proximate cause of the conduct alleged herein and otherwise did directly and proximately cause the plaintiff to have suffered physical pain, mental anguish and emotional pain and suffering.

44. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with an amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

#### **FIFTH CLAIM**

45. The plaintiffs re-allege and incorporate by reference herein all of the allegations contained in paragraphs 1-44 above.

46. By the actions described above, Defendant CITY through its agents and employees, Defendants ATKINS, CAO, DOE 1 and DOE 2 committed the wrongful act of **NEGLIGENT infliction of emotional distress**, which is a tortious act under the laws of the State of New York, by: making false allegations of sexual misconduct by Mr. Uruchima against a minor and forcing him to be subjected to social stigma from family and community and financial deprecation; and knowingly initiating a proceeding on charges that lack both cause and justification.

47. The defendants' acts were outrageous in the extreme, beyond boundaries of decency and utterly unacceptable in a civilized society. They resulted in mental and physical injuries to the Plaintiff, the ramifications of which are still felt to the present day.

48. As a consequence of the foregoing acts, Plaintiff sustained injuries, physical, psychological, and emotional, and was otherwise damaged.

49. WHEREFORE, the plaintiff claims monetary damages against defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial, plus costs and for any further relief that this Honorable Court deems just and proper.

**PRAYER FOR RELIEF**

WHEREFORE, as a result of the foregoing, plaintiff, demand against the defendants, damages in excess of the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over the defendants herein with and amount to be determined at trial.



Robert Rambadadt, Esq.

**THE RAMBADADT LAW OFFICE**

Attorneys for Plaintiff

Office & P.O. Box Address:

16 Madison Sq. Pk. West—12<sup>th</sup> Floor

New York, New York 10010

(646) 450-8049

**ATTORNEY'S VERIFICATION**

STATE OF NEW YORK )  
COUNTY OF NEW YORK)ss.:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am an associate of the law firm of THE RAMBADADT LAW OFFICE, attorneys of record for the plaintiffs in the within action; I have read the foregoing;

**VERIFIED COMPLAINT**

and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: entire file maintained in your deponent's offices; investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York  
March 1, 2023



ROBERT RAMBADADT

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

EDWIN URUCHIMA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ATKIN HOUSSAIN, SGT. SUN CAO, JOHN DOE #1 and  
JOHN DOE #2,

Defendants.

**SUMMONS and VERIFIED COMPLAINT**

**THE RAMBADADT LAW OFFICE**

Attorneys for Plaintiff  
16 Madison Sq. Pk. West—12<sup>th</sup> Floor  
New York, New York 10010  
(646) 450-8049

TO:

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 02/28/2023

Signature: 

Print Signer's Name: Robert Rambadadt

THE RAMBADADT LAW OFFICE